VEER IT SOLUTIONS

INDIA LEAVE POLICY

Vacation Guidelines

? Vacation calendar runs each year from January 1st to December 31st.
? Vacation days are accrued monthly and the balance can be found in the HR Portal.
? All vacation requests must be made in the HR Portal for approval by the employee?s Manager and HR.
? Approved vacation days may be cancelled or substituted in the HR Portal, subject to approval by the employee?s Manager.
? Leave not requested in the HR Portal and not approved by the Manager and HR before the leave begins is considered unauthorized.
? Only in cases of emergency can leave days be approved retrospectively.
? Maximum annual vacation that can be taken consecutively is 2 weeks (10 working days).
? Maximum of 5 days of earned annual vacation can be rolled over to the next year; remaining earned days may be monetized and paid accordingly.

Summary

Leave Type	Description	India/APAC
Annual Leave	Entitled annual paid time-off	3 weeks
Sick/ Personal/Carers Leave	Leave taken when sick.	7 days/year. No rollover
Bereavement Leave	Paid Leave taken to mourn a loved one.	3 days/years. No rollover
Causal/Personal Emergency Leave	Paid Leave taken due to an emergency	8 days. No rollover
Parental Leave	Paid Leave taken when an employee gives birth.	26 weeks (mother only).
Pregnancy Leave	Paid Leave taken by pregnant employee prior to the birth of the child.	8 weeks out of the 26 weeks. No rollover
Paternity leave	Paid Leave taken by non-pregnant partner	5 working days. (father only) No rollover

Earned Leave

- An employee will be entitled to Earned Leave up to 15 working days in a year (exclusive of intervening weekends or public holidays).
- Every employee who completes 20 days in the company would be granted 1.25 days of earned leave, and a similar pattern would be followed for allocation of earned leaves in a given calendar year.
- National / declared / festival / regularly observed weekly days off can be added to Earned Leave and will not be counted as a part of the observed Earned Leave.
- Employees may take leave only after obtaining approval. In the event an employee goes on leave without notifying the Company or without required approval, it will be deemed that the employee has been absent from work without permission, and the period of absence will be treated as leave without pay. The employee will also be subject to disciplinary action.
- At the end of each calendar year, the employee's outstanding Privileged Leave accrual will be captured. Five (5) leaves will be carried forward to next year & the remaining balance will be encashed at the rate of the last basic pay drawn on the 31st of March (Next year). This encashment will be processed on the pay following the 31st of March and will be subject to statutory deductions as legislated.
- At the time of resignation / retirement / termination, the outstanding Earned Leave balances will be encashed at the basic pay rate on the day of resignation/ retirement / termination. This encashment will be processed during the employee's final pay according to regular payroll practices and will be subject to statutory deductions as legislated.
- In a stretch only 2 weeks' leaves (including Holidays/Weekends) will be allowed, unless manager approves it as an exceptional circumstantial basis.

Earned Leave Carry Over

It is important that all employees take their vacation time. Any time not taken but accrued may be carried over to the following year, to a maximum of 5 days

Sick Leave

- All employees may avail sick leave up to 7 (seven) days in a calendar year for personal illness or injury. Any employee who joins through the calendar year shall be entitled to Sick Leave on prorated basis.
- Sick Leave allocation for an employee will be 3.5 leaves on a half yearly basis i.e. (from January-June and July- December cycle)
- When an employee is unable to attend a scheduled shift due to illness, they are responsible to advise their immediate supervisor via phone call at the earliest possible time or at least three (3) hours prior to commencement of the employee's shift.
- Submission of medical certificates of sickness from a certified medical practitioner / doctor will be required in case of Sick Leave lasting three (3) or more continuous days (either an

MBBS preferably in Government hospital in case of general sickness or from a Specialist in case of special nature of sickness). The certification must state that the employee is under his/ her care or treatment for the days in question and that it is his/ her recommendation that such an employee remain off work. This may also include the certification that the employee is fit to return to work.

- Management reserves the right to request medical certificates to support any Sick Leave for less than 3 consecutive days at their discretion. If this request made of the employee and medical evidence is not provided, Management reserves the right to withhold Sick Leave Pay.
- Prior to or on the day employee reports back to work, the Sick Leave records need to be updated in the system. Should the employee be found to not be maintaining their Sick Leave records in the system, they will be subject to disciplinary action.

Sick Leave accruals cannot be rolled over to the subsequent year and will not be encashed at the end of the year. As well Sick Leave accruals will not be encashed upon resignation or termination of employment for any reason.

Casual Leave

All employees of the Company shall be entitled for eight (8) days of Casual Leave in a calendar year for urgent or unforeseen situations; when an emergency prevents an employee from being able to attend a scheduled shift. Any employee who joins through the calendar year shall be entitled for Casual Leave on prorated basis.

- Casual Leave allocation for an employee will be 4 leaves on a half yearly basis.
- i.e. (from January-June and July- December cycle). Should there be extenuating circumstances for which Paid Casual Leave is required for more than two (2) consecutive days, the employee will be required to submit the request to their functional Executive (e.g., Chief Technology Officer) in writing. Only once written permission is obtained may the employee consider the leave approved. The Functional Executive is required to advise the Human Resources Department of such approval.

Paternity Leave

- Paternity Leave is applicable to all male employees who are married (the employee should be married as per Company's records, with information having been provided at the time of joining or at the time of marriage.
- It is to be availed as soon as the child is born (within a week's time) & is available for two children only.
- It cannot be carried forward or added to other leave categories.
- An employee is entitled to 5 (five) continuous working days of leave. This leave can be availed even when the child is adopted.

Maternity Leave

- All female employees who have worked for the company for at least 80 days in the 12 months immediately preceding the date of their expected delivery will be entitled to claim the benefit of maternity leave.
- All female employees will be entitled to claim the benefit of maternity leave of 26 (twenty-six) weeks out of which not more than 8 (eight) weeks should precede the date of the expected delivery.
- All female employees will be required to submit a notice to the company with respect to the same, stating the date from which they will be absent from work.
- All female employees will be required to submit a medical certificate for the same.
- All female employees will be receiving their monthly pay during the maternity leave period referred to in notice submitted by them.

Maternity Leave Policy as per Punjab Government

The statutory provision of leaves allowed in case of maternity, please note that we have thoroughly examined the relevant provisions of the Maternity Benefit Act, 1961, the Maternity Benefit (Amendment) Act, 2017 and the Punjab Maternity Benefit Rules, 1967. Accordingly, please note that Section 5 of the Maternity Benefit Act,1961 entitles maternity benefit to every woman who has worked in an establishment for a period of not less than 80 (eighty) days in the 12(twelve) months immediately preceding the date of her expected delivery. Sub-section 5(3) specifically mentions that the maximum period for which a woman is entitled to claim the benefit of maternity leave is 26 (twenty-six) weeks out of which not more than 8 (eight) weeks should precede the date of her expected delivery.

However, proviso to Sub-section 5(3) further envisages that a woman who has 2(two) or more than 2 (two) surviving children, is entitled to claim maternity benefit for a period of 12 (twelve) weeks out of which not more than 6 (six) weeks should precede the date of her expected delivery. The relevant statutory provision is reproduced hereunder:

“5 (2) No woman shall be entitled to maternity benefit unless she has actually

worked in an establishment of the employer from whom the claims maternity benefit, for a period of not less than [eighty days] in the twelve months immediately preceding the date of her expected delivery”

“5(3) The maximum period for which any woman shall be entitled to maternity benefit shall be [twenty-six weeks of which not more than eight weeks] shall precede the date of her expected delivery.

Provided that the maximum period entitled to maternity benefit by a woman having two or more than two surviving children shall be twelve weeks of which not more than six weeks shall precede the date of her expected delivery”

In addition to this Sub-section 5(4) of the Maternity Benefit Act, 1961 further specifies that a woman who legally adopts a child below the age of 3(three) months is entitled to maternity benefit for a maximum period of 12(twelve) weeks from the date when the child is handed over to the adopting mother or the commissioning mother, as applicable. The relevant statutory provision is reproduced hereunder:

"5(4) A woman who legally adopts a child below the age of three months or a commissioning mother shall be entitled to maternity benefit for a period of twelve weeks from the date the child is handed over to the adopting mother or the commissioning mother, as the case may be"

Further, Sub-section 6(2) of the Maternity Benefit Act,1961 stipulates that the employee applying for the maternity benefit has to submit a notice to the employer with respect to the same, stating the date from which she will be absent from work, which shall not be earlier than 6 (six) weeks from her expected date of delivery. The relevant statutory provision is reproduced hereunder:

"6(2) In the case of a woman who is pregnant, such notice shall state the date from which she will be absent from work, not being a date earlier than six weeks from the date of her expected delivery."

Rule no. 4 of the Punjab Maternity Benefit Rules, 1967 describes that the written notice specified under Section 6 of the Maternity Benefit Act, 1961 shall be in Form "B" as provided therein.

In addition to the above, Rule no. 5 of the Punjab Maternity Benefit Rules, 1967 prescribes the format for the certificate to be provided as proof of the fact that the woman is pregnant, has delivered a child, has undergone miscarriage, or is suffering from illness arising out of pregnancy, delivery, premature birth of child or miscarriage, in the form of Form-C, which shall be given by either of the following:

A. Medical Officer of a Civil Hospital or of a dispensary set up by the State Government or
B. Registered Medical Practitioner.

Please note that industries in every sector are bound to follow the above- mentioned statutory provisions.

Bereavement Leave

Upon the death of a family member, employees are entitled to paid bereavement leave as follows:

- Three (3) consecutive days in the case of the death of employee's family member or close relative.
- Employee's manager or Human Resources reserve the right to request documentation. All Bereavement requests should be submitted to employee manager and HR.

Leave during Notice Period

Employees are not eligible to take any leave when they are serving their notice period under their contract. Any leave taken during the notice period will be considered as leave on loss of pay.

Unauthorized Absence

- Unauthorized absence refers to absence from work without requisite approval.
- The employee will need to offer an explanation to the immediate superior/ manager in the event of any unauthorized absence.
- The employee will not be eligible for payment of salary for this period of absence. The employees may be subject to disciplinary action, where required.

Half Day & Full Day

Half Day: When an employee has logged 4 hours in office, it will be counted as half day.

Full Day: When an employee has logged less than 9 hours in office but has logged at least 6 hours on the day, it shall be counted as a full day working. However, the remaining hours are to be covered in the corresponding week.

Holiday

- The exact date on which the aforesaid public holidays fall shall be made known every year and will be put up on the notice board and HR Portal
- An employee is not eligible to receive ho he/he is on an unpaid leave of absence.
- In case the working of the office is likely to be hampered on account of strike, power cut, etc., the Company may declare, a public or a weekly holiday (except national holidays) to be a normal working day and declare the affected day to be a holiday.

Compensatory Off

During Holidays, teams will work according to business requirements and mutual decision of team members and managers.

- If an employee is required to work on any important assignment on a National / Festival / Declared / Holidays, he/she is eligible for Compensatory off on any other working day.
- Employees who work on holiday will be paid 50% extra on one day salary
- Official approval is required from the manager to work on such National / Festival / Declared / weekly off days. No compensatory offs will be entertained when worked on these days without proper approval.

- The compensatory off must be availed within a period of three months from the date worked.
- Compensatory off when not availed within the stipulated time period will lapse.
- Only two days of compensatory offs can be combined and availed at a stretch. The additional day off must be taken and will not be credited to the employee in their Earned / Privileged Leave accruals unless otherwise approved by the Functional Executive.
- If an employee has worked on the weekend, then he/she can either avail 1 day Comp off or 1 day's salary depending on Manager's decision.

Breaches of this Policy

The Company expects all work participants to ensure they are demonstrating behaviour that is in line with this policy whilst engaged in official duties or while they could be perceived as representing the Company.

A breach of this policy may lead to disciplinary action including, but not limited to, termination of employment or services.

Variations

Veer IT reserve the right to vary, replace or terminate this policy.

All workplace participants have the responsibility to comply with this policy and all other policies which the Company implements and/or varies from time to time.

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Veer IT Solutions India Leave Policy

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This training/demo copy uses synthetic organization and document-control details for the HR Policy Bot project.